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e-Stamp

Certificate No.	:	IN-KA33016420169255R
Certificate Issued Date	:	21-Jan-2019 03:53 PM
Account Reference	:	NONACC (FI)/ kaksfcl08/ HALASURU/ KA-BA
Unique Doc. Reference	:	SUBIN-KAKAKSFCL0800182161893837R
Purchased by	:	EMBASSY INDUSTRIAL PARKS PRIVATE LIMITED
Description of Document	:	Article 5 Agreement relating to Sale of Immoveable property
Description	:	AMENDMENT AGREEMENT
Consideration Price (Rs.)	:	0 (Zero)
First Party	:	EMBASSY INDUSTRIAL PARKS PRIVATE LIMITED
Second Party	:	DRA PROJECTS PRIVATE LIMITED
Stamp Duty Paid By	:	EMBASSY INDUSTRIAL PARKS PRIVATE LIMITED
Stamp Duty Amount(Rs.)	:	400 (Four Hundred only)

EMBASSY INDUSTRIAL PARKS PRIVATE LIMITED IN-KA33016420169255R RS. 400 21-JAN-2019 03:53 PM

Please write or type below this line

THIS STAMP PAPER FORMS AN INTEGRAL PART OF THE AMENDNENT AGREEMENT DATED 21ST JANUARY, 2019 BY AND BETWEEN DRA PROJECTS PVT. LTD, EMBASSY INDUSTRIAL PARKS PRIVATE LIMITED AND BAGUR LOGISTICS PARK PRIVATE LIMITED.

Statutory Alert:

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AMENDMENT AGREEMENT

This amendment agreement (the "**Agreement**") to the share subscription agreement dated November 5, 2018 and the shareholders agreement dated November 5, 2018 is made at Bangalore on this 21st day of January, 2019 ("**Amendment Execution Date**") **AMONGST**:

1. **DRA PROJECTS PRIVATE LIMITED**, a company incorporated under the Companies Act, 1956 with CIN: U70102KA2006PTC039826, PAN: AACCD4378F and having its registered office at 201A/202BA, Queens Corner, No. 3, Queens Road, Bangalore – 560001 (hereinafter referred to as "**DRA**", which expression shall include its successors and permitted assigns) of the **FIRST PART**;

AND

2. **EMBASSY INDUSTRIAL PARKS PRIVATE LIMITED,** a company incorporated under the Companies Act, 1956 with CIN: U60231KA2009PTC050991, PAN: AACCJ2346P and having its registered office at Embassy Point, 150, Infantry Road, Bangalore 560001 (hereinafter referred to as "**EIPPL**", which expression shall include its successors and permitted assigns) of the **SECOND PART.**

AND

3. **BAGUR LOGISTICS PARK PRIVATE LIMITED,** a company incorporated under the Companies Act, 2013 with CIN: U70109KA2018PTC116753, PAN: AAICB0173A and having its registered office at 1st Floor, Embassy Point, 150 Infantry Road, Bangalore, Karnataka – 560 001 (hereinafter referred to as "**Company**", which expression shall include its successors and permitted assigns) of the **THIRD PART.**

Each of DRA, EIPPL and the Company shall hereinafter be referred to individually as a "**Party**" and collectively as the "**Parties**".

WHEREAS:

A. By a share subscription agreement dated November 5, 2018 ("**SSA**") entered into between the Parties, EIPPL and DRA had agreed to undertake the developing and setting up an industrial and logistics park as a joint venture through the Company, where 35% (thirty five per cent) of the Company shall be acquired and held by DRA and the remaining 65% (sixty five per cent) stake in the Company shall be acquired and held by EIPPL.

B. The Parties have also executed a shareholders' agreement dated November 5, 2018 ("**SHA**") to govern their inter-se rights and obligations as shareholders of the Company.

C. The Parties have now agreed to amend the understanding set forth in the SSA in relation to investing a part of their respective Subscription Amounts *(as defined under the SSA)* by subscription to OCDs *(as defined hereinafter)* and also amend the SHA reflecting changes consequent to the amendment of the SSA.

D. Therefore, the Parties are desirous of entering into this Agreement to amend the understanding set forth in the SSA and the SHA in the manner appearing hereinafter.

NOW THIS AGREEMENT WITNESSETH AND IT IS HEREBY MUTUALLY AGREED AND DECLARED BY AND BETWEEN THE PARTIES HERETO AS UNDER:

1. **INTERPRETATION**

Unless otherwise defined or provided for herein, words and expressions, including all capitalized terms used and not defined herein, shall have the meanings as attributed to them in the SSA or the SHA, as applicable. The rules of interpretation set out in clause 1.2 of the SSA shall apply *mutatis mutandis* to this Agreement.

2. **AMENDMENT OF THE SSA**

2.1 The following definition shall be inserted in clause 1.1 of the SSA in the appropriate alphabetical order:

*"**OCDs**" shall mean optionally convertible debentures of the Company of face value Rs. 10 (Rupees Ten only) each having the terms set forth in Schedule 3;*

2.2 The Parties hereby agree that the Company shall:

(i) Against the EIPPL Subscription Amount, issue and allot to EIPPL, (i) 1,36,50,000 (one crore thirty six lakhs fifty thousand) Equity Shares ("**EIPPL Subscription Shares**") of the Company; and (ii) 2,01,81,668 (two crores one lakh eighty one thousand six hundred and sixty eight) OCDs ("**EIPPL Subscription Debentures**") of the Company.

(ii) Against the DRA Subscription Amount, issue and allot to DRA (i) 73,55,385 (seventy three lakhs fifty five thousand three hundred and eighty five) Equity Shares ("**DRA Subscription Shares**") of the Company; and (ii) 1,08,67,052 (one crore eight lakhs sixty seven thousand fifty two) OCDs ("**DRA Subscription Debentures**") of the Company.

2.3 The term "DRA Subscription Shares" appearing wherever in the SSA shall, unless repugnant to the context or meaning thereof, be replaced with the term "DRA Subscription Securities" which shall mean collectively the DRA Subscription Shares and the DRA Subscription Debentures.

2.4 The term "EIPPL Subscription Shares" appearing wherever in the SSA shall, unless repugnant to the context or meaning thereof, be replaced by the term "EIPPL Subscription Securities" which shall mean collectively the EIPPL Subscription Shares and the EIPPL Subscription Debentures.

2.5 The "Closing Resolutions" under the SSA shall include resolution of the Board authorizing changes to the register of debenture holders of the Company to record the subscription of the DRA Subscription Debentures by DRA.

2.6 The following shall be inserted as sub-clauses (vii) and (viii) under clause 6.3 and after clause 6.3(vi) of the SSA:

"(vii) The Company shall issue the certificates for the DRA Subscription Debentures and deliver them to DRA;

(viii) The Company shall update its register of debenture holders to reflect the issue and allotment of the DRA Subscription Debentures."

2.7 Schedule I of the SSA shall be substituted by the schedule contained in Annexure I hereunder.

2.8 The schedule contained in Annexure II hereunder shall be inserted as a new 'Schedule 3' under the

SSA.

3. AMENDMENT OF THE SHA

3.1 The definition of the term 'EIPPL Shares' in clause 1.1 of the SHA shall stand deleted and the term 'EIPPL Shares' wherever appearing in the SHA shall be replaced by the term 'EIPPL Securities' which shall mean the Securities held by EIPPL in the Company from time to time.

3.2 The term "Shares" appearing wherever in the SHA, including Clause 9 of the SHA, shall unless repugnant to the context or meaning thereof, be replaced with the term "Securities".

3.3 *Transfer Restrictions*

3.3.1 The transfer restrictions contained in Clause 9 of the SHA in relation to the shares held by EIPPL and DRA, shall mutatis mutandis, apply respectively to the OCDs held by EIPPL and DRA.

3.3.2 The terms "Offered Price", "ROFO Price" and 'price per Tag Sale Security' shall, where there are different types of Securities mean the price per Security for each type of the Security.

3.3.3 The formula set out in Clause 9.4(ii) shall be applied separately for each type of Security in the event the Tag Transferor and the Transferring Shareholder both hold the type of Security that comprise the Tag Sale Securities. In the event that the Tag Transferor does not hold the type of Security that the Transferring Shareholder is proposing to transfer, then the number of Tag Along Securities that the Tag Transferor shall have the right to tag along shall be arrived by computing the number of the Tag Sale Securities and Tag Along Securities on an as if converted basis.

3.4 To the extent certain terms are defined under the SSA or the SHA and are no longer used or applicable by virtue of the aforestated amendments, such terms shall be deemed to be deleted.

4. MISCELLANEOUS

4.1 With effect from the Amendment Execution Date, the provisions of this Agreement shall modify the agreement and understanding set forth in the SSA and the SHA only to the limited extent set out herein. Except as specifically and expressly provided under this Agreement, all other provisions of the SSA and SHA shall remain unchanged and in full force and effect and shall continue to remain applicable and binding on Parties thereto. Any reference to the SSA or the SHA in any other agreement or document shall be deemed to mean a reference to the SSA or the SHA as amended by this Agreement.

4.2 This Agreement shall be deemed to be incorporated by reference in the SSA and the SHA and shall be deemed to form part thereof and except as set forth herein, all other provisions of the SSA and the SHA in effect prior to this Agreement shall continue to remain in full force and effect.

4.3 The provisions of Clauses 11 (Dispute Resolution), 12 (Confidentiality and Non-Disclosure), 13 (Notices), 15 (Miscellaneous) (except clause 15.3) of the SSA shall apply to this Agreement and shall be deemed to be incorporated herein by reference.

IN WITNESS WHEREOF the Parties hereto have hereunto set and subscribed their respective hands and seals the day and year first hereinabove written.

FOR **EMBASSY INDUSTRIAL PARKS PRIVATE LIMITED**

Name: Anshul Dewat Singhal

Designation: Director

FOR **DRA PROJECTS PRIVATE LIMITED**

Name: Dharmesh Dinesh Ranka

Designation: Director

FOR **BAGUR LOGISTICS PARK PRIVATE LIMITED**

Name: D Vijayakumar

Designation: Director

ANNEXURE I

Schedule 1 of the SSA shall be substituted with the following:

SCHEDULE 1

SHAREHOLDING PATTERN OF THE COMPANY

PART A

ON EXECUTION DATE

Sl. No.	*Name of the Shareholder*	*Number of Securities*	*Percentage of Fully Diluted Share Capital*
1.	*Embassy Industrial Parks Private Limited*	*10,000 Equity Shares*	*100%*
	Total	***10,000***	***100%***

PART B

ON EIPPL INVESTMENT DATE

Sl. No.	*Name of the Shareholder*	*Number of Securities*	*Percentage of Fully Diluted Share Capital*
1.	*Embassy Industrial Parks Private Limited*	*13,660,000 Equity Shares*	*40%*
		20,181,668 OCDs	*60%*
	Total	*-*	***100%***

PART C

UPON CLOSING

Sl. No.	*Name of the Shareholder*	*Number of Equity Shares*	*Percentage of Fully Diluted Share Capital*
1.	*Embassy Industrial Parks Private Limited*	*13,660,000*	*26%*
2.	*DRA Projects Private Limited*	*7,355,385*	*14%*
	Total	***21,015,385***	***40%***

Sl. No.	*Name of the Shareholder*	*Number of OCDs*	*Percentage of Fully Diluted Share Capital*
1.	*Embassy Industrial Parks Private Limited*	*20,181,668*	*39%*
2.	*DRA Projects Private Limited*	*10,867,052*	*21%*
	Total	***31,048,720***	***60%***

ANNEXURE II

The following shall be added as Schedule 3 of the SSA:

SCHEDULE 3

TERMS OF THE OCDs

1. ***Face Value***

The face value of each OCD shall be Rs. 10 (Rupees Ten only).

2. ***Term***

*The term of the OCDs shall be 3 (three) years from the date of issuance of the OCDs ("**Term**").*

3. ***Coupon Rate***

Each OCDs shall carry a coupon rate of 0.1% per annum, payable annually from the date of allotment of the OCDs.

4. ***Participation in Dividends***

Upon conversion of the OCDs into Equity Shares, the holders shall be entitled to participate in the dividend on the Equity Shares, on a pari passu basis with the holders of all other Equity Shares in the Company.

5. ***Voting***

The OCDs will not carry any voting rights.

6. ***Conversion/Redemption of OCDs***

6.1 ***Conversion Ratio***

The OCDs shall be optionally convertible into Equity Shares in the ratio of 1:1, in the manner set out in Paragraph 6.2 of this Schedule 3.

6.2 ***Optional Conversion to Equity Shares***

(i) *The OCD holders shall have the right, after the expiry of 3 (three) years from the date of issuance of the OCDs, to require the Company, by written notice (the "**Conversion Notice**"), to convert all of the OCDs into Equity Shares.*

(ii) *Upon receipt of the Conversion Notice, the Company shall undertake the following with 15 (fifteen) days from the date of the Conversion Notice:*

(a) *Convening of a meeting of the Board, in which meeting the Company shall approve the following:*

(A) *The conversion of OCDs;*

(B) *The cancellation of the certificates representing such number of the OCDs; and*

(C) *The issuance and allotment of such number of Equity Shares to the OCD holder.*

(b) *Issuance of duly stamped share certificates for the relevant number of Equity Shares to the holder of OCDs or electronic credits of shares to the dematerialized accounts of the OCD holder to evidence such holders of the OCDs as the owners of Equity Shares issued upon conversion of such number of the OCDs as are mentioned in the Conversion Notice;*

(c) *Updating its register of members to reflect the holders of the OCDs as the owners of the Equity Shares issued pursuant to the conversion of the OCDs as are mentioned in the Conversion Notice;*

(d) *Filing with the jurisdictional Registrar of Companies the requisite Forms in respect of allotment of the Equity Shares to the OCD holders pursuant to the OCD holders exercising their rights in accordance with this Paragraph;*

(e) *The Parties shall do all such acts and deeds as may be necessary to give effect to the provisions of this Paragraph, including without limitation, convening a meeting of the Board to approve the splitting of the certificates representing the OCDs etc.*

6.3 *In the event the OCD holders do not issue the conversion notice within 30 (thirty) Business Days from the expiry of the Term in accordance with Paragraph 6.2 above, the OCDs shall be mandatorily redeemed and repaid at par along with any accrued interest.*

6.4 ***Compulsory Conversion/Redemption of the OCDs***

In the event of a proposed REIT/INVIT Listing (as defined under the Shareholders' Agreement), either prior to or after the expiry of the Term and assuming that the OCDs have not been converted or redeemed in accordance with Paragraph 6.2 above,, all the outstanding OCDs shall be compulsorily converted or redeemed prior to the said REIT/INVIT Listing. The Company shall, upon receipt of a notice in this regard from EIPPL, either (i) convert all the outstanding OCDs into Equity Shares as if a Conversion Notice has been issued in accordance with Paragraph 6.2 above; or (ii) redeem all the outstanding OCDs at par along with any accrued interest within a period of 15 Business Days.

7. ***Transferability***

The OCDs shall be subject to the transfer restrictions set out in the Shareholders' Agreement and the Articles.